

Following *Castro*, the Court finds that the motion to expunge was meritorious and after it was filed, Dorese withdrew the lis pendens. Given this situation, Ciani is the prevailing party on this motion. Further, Plaintiff did not have substantial justification to record a lis pendens in this case, based upon the complaint as presently alleged.

Here, Ciani seeks \$360 in paralegal expenses and \$2,100 to compensate Ciani for the time he spent preparing this motion. As a self-represented party, the Court cannot award Ciani fees for his work on this motion. (*Trope v. Katz* (1995) 11 Cal.4th 274, 285.) Paralegal fees are sometimes recoverable as part of an attorney fee award, but when award such fees it is done in connection with the services of an attorney. (See *Guinn v. Dotson* (1994) 23 Cal.App.4th 262, 269; *Roe v. Halbig* (2018) 29 Cal.App.5th 286, 312.) Without an attorney to supervise them, paralegals can still assist with some tasks such as filing and formatting documents. (See, Bus & Prof Code § 6450 [paralegals cannot provide legal advice, among other limitations].) It is not clear from Ciani's declaration what tasks the paralegal assisted with and therefore, the Court cannot determine if they are recoverable as costs.

Defendant Ciani is ordered to file and serve submit a supplemental declaration detailing whether the paralegal spent any time on filing or formatting documents, and how much time was spent on those tasks. That declaration must be filed and served on or before noon on April 10, 2026. Plaintiff may file and serve objections to this declaration on or before noon on April 24, 2026. The motion is declined as moot, but the court will take the matter of costs for paralegal work under submission.

8. 9:00 AM CASE NUMBER: C25-01064
CASE NAME: WILTON SHORT VS. FRANKLIN CREDIT MANAGEMENT CORP.
***HEARING ON MOTION IN RE: FOR PLAINTIFF TO FILE SECOND AMENDED COMPLAINT**
FILED BY: SHORT, WILTON C
TENTATIVE RULING:

At a Case Management Conference with the parties on March 10, 2026, the court moved the hearing on Defendants' Demurrer to the First Amended Complaint in this matter to June 5, 2026.

The court on its own motion moved the hearing on Defendants' Demurrer to the First Amended Complaint from June 5, 2026 to July 24, 2026 at 9:00 a.m. due to the unavailability of the Court on June 5, 2026.

On March 10, 2026 the court was unaware of the Plaintiff's instant motion to file a Second Amended Complaint, which was filed on September 18, 2025 and eventually set for hearing on March 27, 2026.

Although this motion is unopposed, there does not appear to be a proof of service of the moving papers on Franklin Credit Management Corp. nor on Bosco Credit LLC.

Due to the potential for inconsistency and inefficiency in having these motions heard on different dates, the court on its own motion moves the hearing on the Plaintiff's motion to file a Second Amended Complaint to July 24, 2026 at 9:00 a.m. in Department 32. Plaintiff is ordered to serve all defendants with notice of motion, motion, memorandum of points and authorities, declaration[s] in

support of motion and proposed order, and file proof of service of these moving papers on or before June 12, 2026.

9. 9:00 AM CASE NUMBER: C25-01418

CASE NAME: LAUREL EVANS VS. ABE WORTMAN

HEARING ON ORDER TO SHOW CAUSE IN RE: COUNSEL: MICHAEL A. DUBLIN, SET BY THE COURTROOM WHY MONTEARY SANCTIONS UP TO \$1,000.00 SHOULD NOT BE IMPOSED
FILED BY:

TENTATIVE RULING:

NOTICE: This decision contains fabricated quotations in the original text of the opinion. They are relevant to the decision and therefore have not been editorially corrected.

On February 13, 2026, the court heard and issued a ruling on a demurrer in this matter. On March 9, 2026, the court on its own motion issued an order to Michael A. Dubin, counsel for Plaintiff, to appear on Friday, March 27, 2026 at 9:00 a.m. in Department 32 (remote appearance is acceptable) and show cause if cause there be, why monetary sanctions of up to \$1000 should not be imposed; why counsel should not be directed to serve a copy of the court's order to show cause describing problems with cases cited to the court to his client; and why the clerk of the court should not similarly be directed to serve a copy of the final order on this OSC to the State Bar, for submitting non-existent and misleading legal citations to the court in Plaintiff's Opposition to Defendant's Demurrer filed on February 2, 2026 in this lawsuit. The court has read and considered Counsel Dubin's five-page declaration, submitted in response to the OSC.

Reasons for the OSC: false and misleading citations to the Court

In Plaintiff's Opposition to the Demurrer at page two, Plaintiff referenced "*Besser v. Walsh* (1990) 222 Cal.App.3d 619, 624," for the proposition that this issue is a fact intensive inquiry and "not readily susceptible to determination on demurrer." The court notes that it was unable to locate the *Besser* citation as an actual case.

After its citation to *Besser*, Plaintiff continued, "Even conclusory alter ego allegations are sufficient to survive demurrer if they give notice of the theory of liability. (*Doe v. Unocal Corp.* (2000) 27 Cal.4th 1099, 1109; *Leek v. Cooper* (2011) 194 Cal.App.4th 399, 415.)" (Opposition, page two.)

The Court was similarly unable to locate the *Unocal* citation. The court also notes that the opinion in *Leek* case does not stand for the stated proposition. The Court in *Leek* held that the allegations of alter ego liability were *insufficiently* plead.

Rule 3.3 of California Professional Rules of Conduct, "Candor to the Tribunal," provides in pertinent part:

(a) A lawyer shall not: